
Reminder letter

Gaurav Saxena <gaurav.saxena@ajnara.com>
To: manish.bly@gmail.com

Thu, Apr 13, 2023 at 12:08 PM

"Dear Valued Customer,

We express our sincere gratitude for your patience and support. As you know that the Hon'ble NCLT and NCLAT have directed the ex-management to continue the construction of your project under the supervision of the IRP and the construction work at "Ajnara Ambrosia" has already been resumed.

Accordingly, we are now raising reminders for the demands to the amount that has already become due as per the construction of the project site, to keep the company as a going concern.

In light of the above, the homebuyers are humbly requested to pay off their pending dues within the stipulated time period and cooperate in the completion of construction work. Your payments will go directly towards the construction of the project as per the guidelines of RERA that is being supervised by the Interim Resolution Professional appointed by the Hon'ble Court.

The requisite approval from IRP has been taken. For further details please refer the CIRP website www.ajnaraindiapirp.in

Thanking you & assuring you our best services always.

Best regards

CRM Team

For Ajnara India Limited"
Thanks & Regards
Gaurav Saxena
Corp. office- D-247/26, Sector- 63,
Noida, Pin code- 201301
Mob No. 8588853060
Website: www.ajnara.com

Manish Gupta <manish.bly@gmail.com>
To: Gaurav Saxena <gaurav.saxena@ajnara.com>, Tanvi Gandhi <tanvi@ajnara.com>
Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Thu, Apr 13, 2023 at 3:25 PM

Hello Gaurav, Tanvi,

Thank you for writing back to us for the demand letter "80097338".

However I would like to again highlight the issue related to this demand:

1. **First time Ajnara has shared this demand with me on 1st April, 2023 with demand date 30-Jun 2017 and due date 18-Aug, 2017**
2. On the same date, I have reverted to sharing the updated demand with the correct due date as **such a demand letter has not been shared from Ajnara earlier**
3. On 8th April, 2023 sent a reminder mail by us to share the updated demand as **no one** (Gaurav and Tanvi) **were also picking the call.**
4. **Earlier(in the year 2020)** also I had asked Ajnara to share the project status, account ledger and expected demand date for External Plaster, but **did not receive any update**, (if required then we can provide email evidence for the same)

And now our concern is the same with this updated demand email, as the Demand date mentioned in the demand letter is 30-Jun, 17 and Reminder Due date is 27-Apr-2023. **Reminder should not be used for the first time raised demand** hence until you are sharing the updated demand letter with the correct Demand/Due date We are assuming that **this demand is not valid**. Please correct me if our understanding is different.

We are **happy to pay** you this demand, if you are sharing the **updated demand letter with correct Demand Date & Due Date** or in case you have any system limitation then share this limitation and updated demand data over email by stating the same.

Concern to change the due date:

We did not receive any such demand from Ajnara in the past and we did not know when it was due in the account. Now if we are paying the demand without changing the demand date/due date then **on the offer of possession, Ajnara can force us to pay a delay penalty**, so it would be good to correct the mistake now and share the updated demand letter with the correct due date.

Note:

If you think that the demand letter with due date (18-Aug, 2017) was shared earlier with us then requesting you to please share the proof of sending the demand to us else please correct the demand date, due date in the demand letter and remove the reminder due date.

Regards

Name: Manish Kumar Gupta

Mb: +919990933804

Project: Ajnara Ambrosia

Unit: G-1607

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Manish Kumar Gupta

Manish Gupta <manish.bly@gmail.com>

Thu, Apr 20, 2023 at 12:26 PM

To: Gaurav Saxena <gaurav.saxena@ajnara.com>, Tanvi Gandhi <tanvi@ajnara.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Hello Gaurav, Tanvi,

This conversation is in regards of the demand letter "80097338".

However I would like to again highlight the issue related to this demand:

1. First time Ajnara has shared this demand with me on 1st April, 2023 with demand date 30-Jun 2017 and due date 18-Aug, 2017
2. On the same date, I have reverted to sharing the updated demand with the correct due date as such a demand letter has not been shared from Ajnara earlier
3. On 8th April, 2023 sent a reminder mail by us to share the updated demand as no one (Gaurav and Tanvi) were also picking the call.
4. On 13th April, 2023 you have shared the reminder of demand over email without considering the my above said concerns where it was clearly mentioned that demand date should be current date instead of year 2017, as no one shared the above said demand with us and if your system says it is shared earlier then please share the proof of the same.
5. On 17th April we got the reminder to demand hard copy without addressing the above mentioned issues.

And now again as on date our concern is the same with this reminder of demand email, as the Demand date mentioned in the above said document (point 4 & 5) is 30-Jun, 17 and Reminder Due date is 27-Apr-2023. Reminder word should not be used for the first time raised demand without updating the demand date. **Requesting you to share the updated demand letter with the correct Demand date/Due date.** We are assuming that this demand is not valid until the above said issues are resolved. Please correct me if our understanding is different.

We are happy to pay you this demand, if you are sharing the updated demand letter with correct Demand Date & Due Date or in case you have any system limitation then share this limitation and updated demand data over email by stating the same and confirming that no delay penalty will be charged due to incorrect demand raised in the system, at the time of offer of possession .

Concern to change the due date:

We did not receive any such demand from Ajnara in the past and we did not know when it was due in the account. Now if we are paying the demand without changing the demand date/due date then **on the offer of possession, Ajnara can force us to pay a delay penalty**, so it would be good to correct the mistake now and share the updated demand letter with the correct due date.

Note:

* Earlier(in the year 2020) also I had asked Ajnara to share the project status, account ledger and expected demand date for External Plaster, but did not receive any update, (if required then we can provide email evidence for the same)

* If you think that the demand letter with due date (18-Aug, 2017) was shared earlier with us then requesting you to please share the proof of sending the demand to us else please correct the demand date, due date in the demand letter and remove the reminder due date.

Regards

Name: Manish Kumar Gupta

Mb: +919990933804

Project: Ajnara Ambrosia

Unit: G-1607

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Manish Kumar Gupta

Manish Gupta <manish.bly@gmail.com>

Wed, Apr 26, 2023 at 8:50 PM

To: Gaurav Saxena <gaurav.saxena@ajnara.com>, Tanvi Gandhi <tanvi@ajnara.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Reminder 3 & Final Reminder

Hi Ajnara Team and IRP,

We haven't received any resolution yet on the reported issue even after several telephonic calls with Ajnara Team members (Tanvi & Gaurav)

Ajnara Team unable to produce any evidence that demand generated in 2017 and also not provided updated demand letter with current Demand/Due date hence we are not paying this demand. Also we mentioned several times in the email that we never received such demand in 2017 but no corrective action was taken by Ajnara.

We tried our level best by sending emails to get updated demand letter to pay, but didn't received positive results from Ajnara, hence we don't expect any late penalty or interest at the time of possession regarding this demand else it will be treated as intentional Fraud & Mental Harassment by Ajnara and we needs to take legal action against this.

I am still open to pay this demand anytime subject to Ajnara providing the demand letter with the current Demand/Due date. Please note after this I will not do any follow up in this regard so please consider this as a last reminder from my side.

Thanks & Regards

Manish Kumar Gupta

G-1607

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Manish Kumar Gupta

Tanvi Gandhi <tanvi@ajnara.com>

Thu, Apr 27, 2023 at 11:10 AM

To: Manish Gupta <manish.bly@gmail.com>, Gaurav Saxena <gaurav.saxena@ajnara.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Dear Sir/Madam,

Based on the feedback received from the various homebuyers it has been brought to our notice that some of the demands have not been communicated in the past to the homebuyers but is being circulated now as reminder.

In relation to the same, we have enquired the said matter and our observations with regards to the same are as follows:

- 1) The demands have been raised in the accounting system already and its corresponding tax has been duly paid by the company on the said date of demand.
- 2) If the team cannot prove the due service and communication of this demands on the said date then no interest/penalty shall be charged from any homebuyers.

Accordingly in order to keep the company as a going concern and complete the projects, the demands are being raised for the amounts which have become due as per respective Builder buyer agreement (BBA) executed with homebuyers. Any interest/penalty shall be dealt as per the direction by Hon'ble NCLT or NCLAT or CoC as the case may be at the time of possession.

Further, the above demand shall be collected in the bank account where the IRP is the authorized signatory and such funds shall be utilized as per RERA Regulation.

In view of the above facts, the homebuyers are humbly requested to pay off their respective demand within the stipulated time period and cooperate in the completion of construction work.

Thank you for your understanding and co-operation.

Regards

CRM Team

For M/s Ajnara India Limited

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Gaurav Saxena <gaurav.saxena@ajnara.com>

To: Manish Gupta <manish.bly@gmail.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Thu, Apr 27, 2023 at 11:16 AM

Dear Sir/Madam,

Based on the feedback received from the various homebuyers it has been brought to our notice that some of the demands have not been communicated in the past to the homebuyers but is being circulated now as reminder.

In relation to the same, we have enquired the said matter and our observations with regards to the same are as follows:

- 1) The demands have been raised in the accounting system already and its corresponding tax has been duly paid by the company on the said date of demand.
- 2) If the team cannot prove the due service and communication of this demands on the said date then no interest/penalty shall be charged from any homebuyers.

Accordingly in order to keep the company as a going concern and complete the projects, the demands are being raised for the amounts which have become due as per respective Builder buyer agreement (BBA) executed with homebuyers. Any interest/penalty shall be dealt as per the direction by Hon'ble NCLT or NCLAT or CoC as the case may be at the time of possession.

Further, the above demand shall be collected in the bank account where the IRP is the authorized signatory and such funds shall be utilized as per RERA Regulation.

In view of the above facts, the homebuyers are humbly requested to pay off their respective demand within the stipulated time period and cooperate in the completion of construction work.

Thank you for your understanding and co-operation.

Regards

CRM Team

For M/s Ajnara India Limited

From: Manish Gupta [mailto:manish.bly@gmail.com]
Sent: Wednesday, April 26, 2023 8:50 PM
To: Gaurav Saxena; Tanvi Gandhi
Cc: IRP of Ajnara India Ltd; amarpal@icai.org
Subject: Re: Reminder letter

Reminder 3 & Final Reminder

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Manish Gupta <manish.bly@gmail.com>
To: Gaurav Saxena <gaurav.saxena@ajnara.com>
Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Thu, Apr 27, 2023 at 11:56 AM

Hello team,

Thanks a lot for writing us back.

Just would like to check that it is already 26 days gone when we have raised the concern and still the above said matter has not been investigated by your team.

Could you please let us know by when you can investigate this matter and this ongoing concern would be resolved in the system as we do not want to face such stress again at the time of possession.

Regards

Manish

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Manish Gupta <manish.bly@gmail.com>
To: Gaurav Saxena <gaurav.saxena@ajnara.com>
Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Thu, Apr 27, 2023 at 3:28 PM

Hello Tanvi,

As per your request, i have paid the due demand.

Pls refer the enclosed screenshot for the reference and share the receipt of the same.

Regards

Manish

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Screenshot_2023-04-27-15-24-20-62_6012fa4d4ddec268fc5c7112cbb265e7.jpg
502K

Manish Gupta <manish.bly@gmail.com>

Sat, Apr 29, 2023 at 10:24 AM

To: Gaurav Saxena <gaurav.saxena@ajnara.com>, Tanvi Gandhi <tanvi@ajnara.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Hi Ajnara Team/IRP,

We have paid External Plaster demand on 27th April, 2023 based on Ajnara commitment and in interest of Project completion. Also we had share the payment details as well.

It is almost 2 days gone but still we are waiting for the payment receipt hence requesting you to provide the payment receipt of the same.

Again putting this in everyone notice that I request to provide evidence for earlier demand almost 3 weeks back, I am again requesting you to provide such evidence (if any) within the next 30 days else it will be considered that this demand was not communicated to us in 2017 and no interest or delay penalty applicable for the same.

I want to clarify this ASAP as I don't want to keep this dispute pending at the time of Possession as it's already been more than 10 Years since we booked this property and do not want any further mess at the time of possession.

Regards

Manish Kumar Gupta

+919990933804

AM-G-1607

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Manish Kumar Gupta

Tanvi Gandhi <tanvi@ajnara.com>

Mon, May 1, 2023 at 12:08 PM

To: Manish Gupta <manish.bly@gmail.com>, Gaurav Saxena <gaurav.saxena@ajnara.com>

Cc: IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Dear Sir,

We will share the receipt with you asap.

Regards

Tanvi

[Quoted text hidden]

Manish Gupta <manish.bly@gmail.com>

Thu, May 4, 2023 at 3:19 PM

To: Tanvi Gandhi <tanvi@ajnara.com>

Cc: Gaurav Saxena <gaurav.saxena@ajnara.com>, IRP of Ajnara India Ltd <cirp.ajnaraindia@gmail.com>, amarpal@icai.org

Hello team,

Still i am waiting for the payment receipt hence requesting you to please share the same. In case of any technical challenge please confirm the receiving of the payment over the mail.

Regards

Manish

G-1607

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